

**Warning statement***Property Agents and Motor Dealers Act*

- Chapter 11

This form is effective from 1 October 2010.

Department of Employment, Economic
Development and Innovation**Instructions**

This form is to be attached to a proposed relevant contract of sale for residential property to be read and signed by a proposed buyer **BEFORE** the proposed buyer signs the proposed relevant contract.

The seller or seller's agent must give the proposed buyer a clear statement directing the buyer's attention to the proposed relevant contract and to this warning statement before the proposed buyer signs the proposed relevant contract. Failure to give the proposed buyer a clear statement may give the buyer a right to terminate

the contract under section 370 within 90 days of receiving a copy of the relevant contract unless settlement

Property address

Note: If no street address
is applicable, use lot
and plan information to
identify the property

Street name and number 28/9-11 Manning Street,

Suburb South Brisbane

State **Q L D** Postcode **4 1 0 1**

WARNING

DO NOT sign the proposed relevant contract for the above property until you have read and understood **ALL SECTIONS** of this form. **DO NOT** sign if you feel pressured.

The relevant contract is subject to a five (5) business day cooling-off period. You may terminate this contract during the cooling-off period. However, the seller may deduct a termination penalty of up to 0.25% of the purchase price from the deposit.

You should obtain independent:

- **legal advice** See note 1
- **valuation** See note 2

Cooling-off period**What is the cooling-off period?**

The cooling-off period is five (5) business days, during which you can change your mind about purchasing this property. Use this time to seek independent legal advice and an independent valuation of the property.

When does the cooling-off period start?

Your cooling-off period starts on the day you receive a copy of the completed relevant contract from the seller or seller's agent. The proposed contract becomes a relevant contract when both parties have signed. In any dispute about the commencement of the cooling-off period, it will be up to the seller to prove the buyer received a copy of the relevant contract. If you receive a copy of the relevant contract on a day other than a business day, the cooling-off period commences on the first business day after you receive a copy of the relevant contract.

When does the cooling-off period end?

Your cooling-off period ends at 5.00pm on the fifth business day after the cooling-off period started. A business day is a day other than a Saturday, Sunday or public holiday.

Can I waive or shorten the cooling-off period?

Yes, but only if you engage an independent lawyer who must give you a lawyer's certificate explaining the purpose and nature of the certificate. You should seek advice from your lawyer about the effect of waiving or shortening your cooling-off period. If you are waiving the cooling-off period, the lawyer's certificate must be given to the seller or seller's agent before you and the seller enter into the relevant contract.

Cooling-off period continued

What should I do during the five (5) day cooling-off period?

It is strongly recommended that you seek independent legal advice and obtain an independent valuation of the property during this time and that you understand and agree with the terms and conditions of the contract.

How do I terminate the contract during the cooling-off period and what happens if the relevant contract is terminated?

If you want to terminate the contract at any time before the end of the five (5) day cooling-off period, you must give a signed, dated notice to the seller indicating that you wish to terminate the contract during the cooling-off period. The notice must state that the relevant contract is terminated under section 370A of the *Property Agents and Motor Dealers Act 2000*. The seller must refund your deposit within 14 days of the termination. The seller may deduct a termination penalty of up to 0.25% of the purchase price. Make sure you terminate any building contract associated with this property if you terminate this contract during the cooling-off period.

What happens after the cooling-off period ends?

If you do not terminate the contract during the cooling-off period, you are legally bound by the contract, subject to the terms and conditions of the contract.

Other important information

Read the attached proposed relevant contract. Do not be pressured into signing the proposed relevant contract before you have read it.

Note 1 - Independent legal advice

Do you fully understand the legal consequences of signing the attached proposed relevant contract? Before signing the proposed relevant contract, it is strongly recommended that you seek independent legal advice and clarify any queries or concerns you have about buying the property. Are you sure the person you have obtained advice from is totally independent from the seller or seller's agent? Exercise extreme caution in accepting the advice of anyone referred to you by the seller or seller's agent.

Note 2 - Independent valuation of the property

Are you sure the purchase price for this property is fair? You should consider obtaining an independent valuation of the property before you sign the contract, or before your cooling-off period ends. When choosing a valuer you should ask whether the valuer has any relationship with any person involved in selling the property and whether they have professional indemnity insurance. Before you engage the valuer ask about the cost of the valuation. For more information about valuations, go to www.fairtrading.qld.gov.au/house-valuation.htm.

Building contracts

For building contracts associated with the purchase of residential property, you should ensure that the building contract price is not over-valued or inflated. Get a valuation or compare homes of similar value advertised or displayed by other home builders. Domestic building contracts also have a cooling-off period under the *Domestic Building Contracts Act 2000* (section 72). Please check the Building Services Authority of Queensland website at www.bsa.qld.gov.au for further information about building contracts. Remember to terminate any building contracts related to this property if you terminate this contract.

Claim fund and property developers

A claim fund exists which, in some cases, enables buyers to make a claim if they suffer financial loss because a real estate agent commits a claimable offence. Strict guidelines and timeframes apply. If you suffer loss while buying an investment property or buying any property from a property developer you can not make a claim for loss against the fund.

How do I know if I'm dealing with a licensed real estate agent or property developer and/or obtain further information about purchasing real estate?

The Fair Trading website at www.fairtrading.qld.gov.au provides you with useful information about purchasing property. You can check that you are dealing with a licensed real estate agent or property developer at www.fairtrading.qld.gov.au/are-you-licensed.htm or by phoning 13 13 04.

Buyer's acknowledgment

I/we have read all sections of this warning statement and I/we acknowledge that by signing this warning statement, my/our attention has been directed to this warning statement and the attached proposed relevant contract by a clear statement and I/we have signed the warning statement BEFORE I/we signed the attached proposed relevant contract.

Signing this Warning Statement negates any termination right I/we may have had under section 370 of the *Property Agents and Motor Dealers Act 2000*.

Name Paul Lawrence Stewart

Lindsay Joy Stewart

Name

Signature

Signature

Date

29/10/2012

Date

29/10/2012

D D M M Y Y Y Y

D D M M Y Y Y Y

Information sheet (body corporate information)*Body Corporate and Community Management Act 1997*

This form is effective from 29 April 2011

WARNING

You are strongly advised to obtain independent legal advice regarding any questions or concerns you have about purchasing the property or your prospective rights and obligations as a member of a body corporate.

Notice to Agent: The *Property Agents and Motor Dealers Act 2000* and *Body Corporate and Community Management Act 1997* (the Act) include strict requirements for presentation of prescribed warning statements and information sheets. Failure to comply may result in cancellation of the contract.

By law the seller or the seller's agent must attach this information sheet to the contract. Do NOT sign the contract of sale without reading this information sheet.

In addition to the contract, you should have before you

- ☒ A separate warning statement, if the lot is a residential property, provided by the seller under the *Property Agents and Motor Dealers Act 2000*.
- ☒ A disclosure statement provided by the seller, containing essential information about the body corporate that you will become a member of through purchasing this property (eg. the amount of annual contributions currently set by the body corporate and payable by the lot owner).
- ☒ a community management statement for the scheme provided by the seller, containing important details about the scheme including details of any proposed future development of the scheme, the lot entitlements, by-laws and the regulation module applying to the scheme.

Community titles schemes

This contract warning contains important information you should read and understand before signing a contract to buy a lot in a community titles scheme. A community title scheme includes duplexes, residential unit blocks, high rise apartment complexes, town house complexes and some commercial premises. They contain individually owned units and common property such as lawns and access roadways.

Some new unit owners do not realise owning a lot in a community titles scheme brings with it certain obligations. You should carefully consider if living or investing in a community titles scheme suits your lifestyle and financial needs.

When a community titles scheme is established, a body corporate is created to administer the scheme. Each lot owner is automatically a member of their body corporate and enjoys certain rights and responsibilities.

Owners are NOT able to decline to be a member of their body corporate. Normally, an elected committee carries out day-to-day functions on behalf of the body corporate. Bodies corporate may also engage service providers such as body corporate managers and on-site managers, caretakers and letting agents.

Common obligations of a body corporate include:

- administering the common property and any body corporate assets
- enforcing the by-laws for the scheme, such as noise levels, the keeping of pets, car parking and a range of other matters
- arranging compulsory body corporate insurance
- conducting general meetings of owners, adopting budgets, and levying contributions to fund the operation of the body corporate
- maintaining bank accounts, keeping records, and preparing financial statements.

Common obligations of individual lot owners include:

- making financial contributions toward the body corporate administrative costs
- complying with by-laws
- maintaining their lot in good condition

Suggested searches and matters to investigate

There are significant differences between owning a lot in a community titles scheme and owning other types of property (such as a detached house). In addition to carrying out conveyancing searches, it is also recommended you investigate a number of special body corporate matters through the following sources:

1. Department of Justice and Attorney-General, Office of the Commissioner for Body Corporate and Community Management

Conduct a search at the Office of the Commissioner for Body Corporate and Community Management for any Adjudicator's Orders (a decision regarding the outcome of a dispute) made concerning the scheme.

General information and fact sheets are also provided about community title living and body corporate rules and regulations. For more information, call 1800 060 119 or visit www.justice.qld.gov.au/bccm

2. Body Corporate Secretary

Obtain a **Body Corporate Information Certificate** from the body corporate secretary, or body corporate manager, whose name and address is supplied in the disclosure statement. Compare the disclosure statement with the information certificate, as inaccurate information in the disclosure statement may give you grounds to cancel the contract (Sections 209 or 217 of the Act).

A search of the body corporate records can provide other important information, such as whether any improvements to the lot you are purchasing (e.g. balcony enclosure, air conditioning) were approved, whether any conditions apply, and who is responsible for their maintenance and insurance.

Also, check for any agreements the body corporate may have entered into (e.g. caretaking, letting, body corporate management or lift maintenance).

Checklist

- ☒ By purchasing this property, do you know you will be part of a body corporate?
- ☒ Are you aware of any contracts the body corporate is a party to?
- ☒ Have you read and understood the body corporate by-laws?
- ☒ Do you understand your likely financial contributions to the body corporate?
- ☒ Are you aware that an adjustment of lot entitlements may increase or decrease your financial contributions to the body corporate?
- ☒ Are you aware that your financial contributions to the body corporate will vary as the financial liabilities of the body corporate change?
- ☒ Do you understand your maintenance responsibilities?
- ☒ Do you understand the role of the body corporate manager and on-site manager (if appointed)?

Buyer's acknowledgment

I/we have read all sections of this information sheet and I/we have acknowledged and signed the Information sheet BEFORE I/we signed the attached contract.

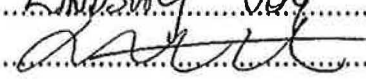
If the lot is residential property, I/we acknowledge that by signing this information sheet, my/our attention has been directed to this information sheet and the attached proposed relevant contract by a clear statement and that signing this information sheet negates any termination right I/we may have had under section 206A or 213A of the *Body Corporate and Community Management Act 1997*.

Name Paul Lawrence Stewart

Signature 

Date 29/10/2012
D D M M Y Y Y Y

Name Lindsay Joy Stewart

Signature 

Date 29/10/2012
D D M M Y Y Y Y



Contract



For Residential Lots in a Community Titles Scheme Fifth Edition

Accredited Agency

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This document has been approved by The Real Estate Institute of Queensland Limited and the Queensland Law Society Incorporated as being suitable for the sale and purchase of Residential Lots in a Community Titles Scheme in Queensland except for new residential property in which case the issue of GST liability must be dealt with by special condition.

The Seller and Buyer agree to sell and buy the Property under this contract

Reference Schedule

Contract Date: 5 November, 2012.
Agent: Favray Pty Ltd & Lush Holdings Pty Ltd at T/A RAAS Real Estate-Brisbane
ABN: 15 835 518 192 **Licence Number:** 2507272 & 1800919
Address: PO Box 1325, Sunnybank Hills Qld 4109
Telephone: 07 3299 1744 **Facsimile:** 07 3299 1476 **Mobile:**
Email Address: mike@raas.com.au

Parties

Seller: Heather Anne Finn
ABN: **Email Address:** heather111finn@gmail.com
Address: 3206/77 Harpourt Square, Toronto, Ontario M5J 2S2
Telephone: +41 416 871 5426 **Facsimile:** **Mobile:**
Seller's Solicitor: Courtice Neilson Lawyers (or any other solicitor notified to the Buyer)
ABN: **Ref:** Geoff Neilson
Address: PO Box 7168, East Brisbane QLD 4169
Telephone: 07 3391 8866 **Facsimile:** 07 3391 0387 **Mobile:**
Email Address: neilson@courtice-neilson.com.au
Buyer: Paul Lawrence Stewart ✱
ABN: **Email Address:** stewart061@bigpond.com
Address: 11 Donald Place, Brassall QLD 4305
Telephone: 07 3201 8262 **Facsimile:** **Mobile:**
Buyer's Solicitor: Walker Pender Group (or any other solicitor notified to the Seller)
ABN: **Ref:** Peter Walker
Address: PO Box 144, Ipswich QLD 4305
Telephone: 07 3813 7888 **Facsimile:** **Mobile:**
Email Address: mail@walkerpenders.com.au

Property Lot: Address: 28/9-11 Manning Street, South Brisbane QLD 4101

Description: Lot: 28 on SP :170800
Scheme: Zen Residence Community Titles Scheme: 36283
County: Stanley Parish: South Brisbane
Title Reference: 50607329
Present Use: Residential **Local Government:** Brisbane City
Excluded Fixtures: NIL

Included Chattels: As per attached

**Matters
Affecting
Property**

Title Encumbrances: NIL

(If the Property is sold free from Title Encumbrances insert "NIL")
(If the Property is sold subject to Title Encumbrances, they must be described)

Tenancies:

Tenant's Name: Merrick Man

Term and Options: 12 months fixed term with renewal

Starting Date of Term: 09/11/2011

Ending Date of Term: 09/11/2012

Rent: \$510

Bond: \$2040

Managing Agent: Valkenny Pty Ltd

Address: 2/9-11 Manning Street, South Brisbane QLD 4101

Telephone:

Facsimile:

Mobile:

Email: valken@blgpond.com

Price

Deposit Holder: RAAS Real Estate - Brisbane

(Unless otherwise specified in this contract, the Purchase Price includes any GST payable on the supply of the Property to the Buyer)

Purchase Price: \$ 380,000

Deposit: \$ 1,000

Initial Deposit payable when Buyer signs this contract

\$ 18,000

Balance Deposit (if any) payable on: Finance Approval

Default Interest Rate:

% (If no figure is inserted, the Contract Rate published by the Queensland Law Society Inc will apply)

Finance

Finance Amount: \$ Sufficient to complete purchase

(Unless all of "Finance Amount", "Financier" and "Finance Date" are completed, this contract is not subject to finance and clause 3 does not apply)

Financier: Any financial institution of purchasers choice

Finance Date: 21 days from date of contract

**Building
and/or
Pest
Inspection
Date**

Inspection Date: 7 days from date of contract

(If "Inspection Date" is not completed, the contract is not subject to an inspection report and clause 4 does not apply)

**Pool
Safety for
non-shared
pools only**

Complete the following questions if there is a non-shared pool on the Lot

Q1. Is there a non-shared pool on the Lot?

☐ Yes

☒ No Clause 4.7 of this contract does not apply

Q2. If the answer to Q1 is Yes, is there a Compliance or Exemption Certificate for the non-shared pool at the time of contract?

☐ Yes Clause 5.3(1)(f) applies

☐ No Clause 4.7 applies (except where this contract is formed on a sale by auction)

If there is a pool on the Lot and Q2 is not completed then clause 4.7 applies.

Q3. If the answer to Q2 is No, has a Notice of no pool safety certificate been given prior to contract?

☐ Yes

☐ No

Note: this is an obligation of the Seller under Section 16 of the Building Regulation 2006

**Pool Safety
Inspector:**

(The Pool Safety Inspector must be licensed under the Building Act 1976 and Building Regulation 2006)

**Pool Safety
Inspection Date:**

(Clause 4.7(2) applies except where this contract is formed on a sale by auction)

**Electrical
Safety
Switch and
Smoke
Alarm**

The Seller gives notice to the Buyer that an Approved Safety Switch for the General Purpose Socket Outlets is:

☒ *Installed in the Lot

☐ *not installed in the Lot
**Mark whichever is applicable*

[WARNING: By giving false or misleading information in this section, the Seller may incur a penalty. The Seller should seek expert and qualified advice about completing this section and not rely on the Seller's Agent to complete this section.]

The Seller gives notice to the Buyer that a Compliant Smoke Alarm(s) is/are:

☒ *Installed in the Lot

☐ *not installed in the Lot
**Mark whichever is applicable*

[WARNING: Failure to install a Compliant Smoke Alarm is an offence under the Fire and Rescue Service Act 1990.]

**Additional
Body
Corporate
Information**

Interest Schedule Lot Entitlement of Lot: 244

Aggregate Interest Schedule Lot Entitlement: 9999

Contribution Schedule Lot Entitlement of Lot: 247

Aggregate Contribution Schedule Lot Entitlement: 10003

**Insurance
Policies**

Insurer: *Strata Unit Underwriters*

Policy No: *06S8990083*

Building: *\$14,790,395*

Public Liability: *\$20,000,000*

Other: *Refer to Body Corporate Disclosure Statement attached*

**Pool
Safety for
shared
pools only**

Complete the following questions if there is a shared pool on the Land.

A. Is there a shared pool on the Land or on adjacent land used in association with the Land?

☒ Yes

☐ No

B. If the answer to A is Yes, is there a Compliance or Exemption Certificate for the shared pool at the time of contract?

☒ Yes

☐ No

C. If the answer to B is No, has a Notice of no pool safety certificate been given prior to contract?

☐ Yes

☐ No

Note: This is an obligation of the Seller under Section 16 of the Building Regulation 2006.

**Neighbour-
hood
Disputes
Resolution
Act 2011**

The Seller gives notice to the Buyer in accordance with Section 83 of the Neighbourhood Disputes Resolution Act 2011 that:

☒ *neither the Land or the Property is the subject of an application to, or an order made by, the Queensland Civil and Administrative Tribunal (QCAT) in relation to a tree on the Land or the Property

☐ *the Land or the Property is the subject of an application to, or an order made by, QCAT in relation to a tree on the Land or the Property, a copy of which has been given to the Buyer prior to the Buyer signing the contract

**Mark whichever is applicable*

[WARNING: Failure to comply with s83 Neighbourhood Disputes Resolution Act 2011 by giving a copy of an order or application to the Buyer (where applicable) prior to Buyer signing the contract will entitle the Buyer to terminate the contract prior to Settlement.]

The REIQ Terms of Contract for Residential Lots in a Community Titles Scheme (Pages 6-13)
Fifth Edition Contain the Terms of this Contract.

Special Conditions

1. Execution by Facsimile or Electronic Communication

The Buyer and Seller agree that a facsimile copy or electronic communication (e-mail) copy of this Contract of Sale, signed by both parties, shall constitute sufficient evidence of this contract and shall be binding on both parties, notwithstanding that the parties intend executing this Contract in the original form for stamp duty purposes at a later date.

Settlement **Settlement Date:** 40 days from date of contract

(or the next Business Day if that is not a Business Day in the Place for Settlement)

Place for Settlement: Brisbane

(If Brisbane is inserted this is a reference to Brisbane CBD)

Signing



Seller



Witness

Buyer



Witness

Deposit Holder (Who acknowledges having received the Initial Deposit and agrees to hold that amount and any Balance Deposit when received as Deposit Holder for the parties as provided in the Contract)

The REIQ Terms of Contract for Residential Lots in a Community Titles Scheme (Pages 6-13)
Fifth Edition Contain the Terms of this Contract.

Seller's Disclosure

[WARNING : The Seller is taken to have knowledge of significant Body Corporate matters that may affect the Buyer, where the Seller ought reasonably to be aware of those matters.

Section 223(4) *Body Corporate and Community Management Act 1997*

Latent or Patent Defects in Common Property or Body Corporate Assets
[Sections 223(2)(a) and 223(2)(b) *Body Corporate and Community Management Act 1997*]

[Annex details of disclosure made by the Seller (if any)]

NONE KNOWN

Actual or Contingent or Expected Liabilities of Body Corporate
[Sections 223(2)(c) and 223(2)(d) *Body Corporate and Community Management Act 1997*]

[Annex details of disclosure made by the Seller (if any)]

NONE KNOWN

Circumstances in Relation to Affairs of the Body Corporate
[Section 223(3) *Body Corporate and Community Management Act 1997*]

[Annex details of disclosure made by the Seller (if any)]

NONE KNOWN

Exceptions to warranties in Clause 7.4
[Annex details of disclosure made by the Seller (if any)]

NONE KNOWN

UNIT 28 FURNITURE

	ITEM	CONDITION	COMMENTS
	Kitchen		
1	Refrigerator	Good	
2	Microwave Oven	Good	
3	Toaster Electric Jug Crockery X 6 Cutlery X 8 Cutting Boards	Ok	
	Dining / Living / Balcony		
4	Dining Suite Black Table & 4 Chairs with Cushions	Good	
5	Outdoor Table & 4 Chairs	Ok	
6	Television	Good	
7	TV Cabinet 1 Lamp Table Black 1 Red Pouffe	Good	
8	Glass Coffee Table	Good	
9	White Leather Lounge with Chaise	Good	No Marks or Tears
10	Large Black Shaggy Mat	Good	
	Bedroom		
11	QS Mattress Protector	Good	
12	QS Bed	Good	
13	QS Mattress	Good	No Marks
14	Doona with White Cover	Good	
	Laundry / Bathroom / Linen Cupboard		
15	Washing Machine	Good	
16	Dryer		
17	Ironing Board & Iron	Good	
18	Vacuum Cleaner	Good	
19	Clothes Airer Rubbish Bin	Good	
20	Mop		

Terms of Contract

For Residential Lots in a Community Titles Scheme

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1. Definitions

1.1 In this contract:

- (1) terms in bold in the Reference Schedule and the Disclosure Statement have the meanings shown opposite them unless the context requires otherwise; and
- (2) (a) **"Approved Safety Switch"** means a residual current device as defined in the *Electrical Safety Regulation 2002*;
- (b) **"Balance Purchase Price"** means the Purchase Price, less the Deposit, adjusted under clause 2.6;
- (c) **"Bank"** means:
 - (i) an entity carrying on banking business as defined by section 6 of the *Banking Act 1959* of the Commonwealth; or
 - (ii) a bank constituted under a law of a state;
- (d) **"Body Corporate"** means the body corporate of the Scheme;
- (e) **"Bond"** means a bond under the *Residential Tenancies and Rooming Accommodation Act 2008*;
- (f) **"Building"** means any building that forms part of the Lot or in which the Lot is situated;
- (g) **"Business Day"** means a week day other than a public holiday in the Place for Settlement;
- (h) **"Compliance or Exemption Certificate"** means:
 - (i) a Pool Safety Certificate; or
 - (ii) a building certificate that may be used instead of a Pool Safety Certificate under section 246AN(2) of the *Building Act 1975*; or
 - (iii) an exemption from compliance on the grounds of impracticality under section 245B of the *Building Act 1975*;
- (i) **"Compliant Smoke Alarm"** means a smoke alarm complying with sections 104RB (2) or (4) of the *Fire and Rescue Service Act 1990*;
- (j) **"Contract Date"** or **"Date of Contract"** means the date inserted in the Reference Schedule;
- (k) **"Court"** includes any tribunal established under statute;
- (l) **"Disclosure Statement"** means the statement under section 206 (existing lot) or section 213 (proposed lot) of the *Body Corporate and Community Management Act 1997*;
- (m) **"Encumbrances"** includes:
 - (i) unregistered encumbrances
 - (ii) statutory encumbrances; and
 - (iii) Security Interests.
- (n) **"Essential Term"** includes, in the case of breach by:
 - (i) the Buyer: clauses 2.2, 2.5(1), 5.1 and 6.1; and
 - (ii) the Seller: clauses 5.1, 5.3(1)(a) – (d), 5.3(1)(e)(i) & (iii), 5.3(1)(f), 5.5 and 6.1;but nothing in this definition precludes a Court from finding other terms to be essential;
- (o) **"Financial Institution"** means a Bank, building society or credit union;
- (p) **"General Purpose Socket Outlet"** means an electrical socket outlet as defined in the *Electrical Safety Regulation 2002*;
- (q) **"GST"** means the goods and services tax under the *GST Act*;
- (r) **"GST Act"** means *A New Tax System (Goods and Services Tax) Act* and includes other GST related legislation;
- (s) **"Improvements"** means fixed structures in the Lot (such as stoves, hot water systems, fixed carpets, curtains, blinds and their fittings, clothes lines, fixed satellite dishes and television antennae, in-ground plants) but does not include the Reserved Items;
- (t) **"Keys"** means keys, codes or devices in the Seller's possession for all locks or security systems on the Property;
- (u) **"Land"** means the Scheme land;
- (v) **"Notice of no pool safety certificate"** means the Form 36 under the *Building Regulation 2006* to the effect that there is no Pool Safety Certificate issued for the Land and/or the Lot;
- (w) **"Notice of nonconformity"** means a Form 26 under the *Building Regulation 2006* advising how the pool does not comply with the relevant pool safety standard;
- (x) **"Outgoings"** means:
 - (i) rates or charges on the Lot by any competent authority (for example, council rates, water rates, fire service levies);
 - (ii) land tax; and
 - (iii) regular periodic contributions payable to the Body Corporate (other than Special Contributions);
- (y) **"Plan"** means the building units, group titles or survey plan containing the Lot;
- (z) **"Pool Safety Requirements"** means the requirements for pool safety contained in the *Building Act 1975* and *Building Regulation 2006*;
- (aa) **"Pool Safety Certificate"** has the meaning in section 231C(a) of the *Building Act 1975*;
- (bb) **"Pool Safety Inspection Date"** means the Pool Safety Inspection Date inserted in the Reference Schedule. If no date is inserted in the Reference Schedule, the Pool Safety Inspection Date is taken to be the earlier of the following:
 - (i) the inspection date for the Building and/or Pest inspection; or
 - (ii) 2 Business Days before the Settlement Date;
- (cc) **"Pool Safety Inspector"** means a person authorised to give a Pool Safety Certificate;
- (dd) **"PPSR"** means the Personal Property Securities Register established under *Personal Property Securities Act 2009* (Cth);
- (ee) **"Property"** means:
 - (i) the Lot;
 - (ii) the improvements; and
 - (iii) the included chattels;

- (ff) "Regulation Module" means the regulation module for the Scheme;
- (gg) "Rent" means any periodic amount, including outgoings, payable under the Tenancies;
- (hh) "Reserved Items" means the Excluded Fixtures and all chattels in the Lot other than the Included Chattels;
- (ii) "Scheme" means the community titles scheme containing the Lot;
- (jj) "Security Interests" means all security interests registered on the PPSR over Included Chattels and Improvements;
- (kk) "Site Value" means
- In the case of non-rural land, site value under the *Land Valuation Act 2010* or
 - In the case of rural land, the unimproved value of the land under the *Land Valuation Act 2010*.
- (ll) "Special Contribution" means an amount:
- levied by the Body Corporate under the Regulation Module for a liability for which no provision or inadequate provision has been made in the budget of the Body Corporate; or
 - payable in connection with an exclusive use by-law;
- that is not an Outgoing;
- (mm) "Transfer Documents" means:
- the form of transfer under the *Land Title Act 1994* required to transfer title in the Lot to the Buyer; and
 - any other document to be signed by the Seller necessary for stamping or registering the transfer; and
- (nn) "Transport Infrastructure" has the meaning defined in the *Transport Infrastructure Act 1994*.
- 1.2 Words and phrases defined in the *Body Corporate and Community Management Act 1997* have the same meaning in this contract unless the context indicates otherwise.
2. Purchase Price
- 2.1 GST
- Unless otherwise specified in this contract, the Purchase Price includes any GST payable on the supply of the Property to the Buyer.
- 2.2 Deposit
- The Buyer must pay the Deposit to the Deposit Holder at the times shown in the Reference Schedule. The Deposit Holder will hold the Deposit until a party becomes entitled to it.
 - The Buyer will be in default if it:
 - does not pay the Deposit when required;
 - pays the Deposit by a post-dated cheque; or
 - pays the Deposit by cheque which is dishonoured on presentation.
 - The Seller may recover from the Buyer as a liquidated debt any part of the Deposit which is not paid when required.
- 2.3 Investment of Deposit
- If:
- the Deposit Holder is instructed by either the Seller or the Buyer; and
 - it is lawful to do so;
- the Deposit Holder must:
- Invest as much of the Deposit as has been paid with any Financial Institution in an interest-bearing account in the names of the parties; and
 - provide the parties' tax file numbers to the Financial Institution (if they have been supplied).
- 2.4 Entitlement to Deposit and Interest
- The party entitled to receive the Deposit is:
 - If this contract settles, the Seller;
 - If this contract is terminated without default by the Buyer, the Buyer; and
 - If this contract is terminated owing to the Buyer's default, the Seller.
 - The interest on the Deposit must be paid to the person who is entitled to the Deposit.
 - If this contract is terminated, the Buyer has no further claim once it receives the Deposit and interest unless the termination is due to the Seller's default or breach of warranty.
 - The Deposit is invested at the risk of the party who is ultimately entitled to it.
- 2.5 Payment of Balance Purchase Price
- On the Settlement Date, the Buyer must pay the Balance Purchase Price by Bank cheque as the Seller directs.
 - Despite any other provision of this contract, reference to a "Bank cheque" in clause 2.5(1):
 - includes a cheque drawn by a building society or credit union on itself;
 - does not include a cheque drawn by a building society or credit union on a Bank;
 and the Seller is not obliged to accept a cheque referred to in clause 2.5(2)(b) on the Settlement Date.
- 2.6 Adjustments to Balance Purchase Price
- The Seller is liable for Outgoings and is entitled to Rent up to and including the Settlement Date. The Buyer is liable for Outgoings and is entitled to Rent after the Settlement Date.
 - Subject to clauses 2.6(3), 2.6(4), 2.6(5), 2.6(6) and 2.6(17), Outgoings for periods including the Settlement Date must be adjusted:
 - for those paid, on the amount paid;
 - for those assessed but unpaid, on the amount payable (excluding any discount); and
 - for those not assessed:
 - on the amount the relevant authority or the Body Corporate advises will be assessed (excluding any discount); or
 - If no advice on the assessment to be made is available, on the amount of the latest assessment (excluding any discount).
 - If there is no separate assessment of rates for the Lot at the Settlement Date and the Local Government informs the Buyer that it will not apportion rates between the Buyer and the Seller, then:
 - the amount of rates to be adjusted is that proportion of the assessment equal to the ratio of the interest schedule lot entitlement of the Lot to the aggregate interest schedule lot entitlement of the Scheme; and

- (b) if an assessment of rates includes charges imposed on a "per lot" basis, then the portion of those charges to be adjusted is the amount assessed divided by the number of lots in that assessment.
- (4) Land tax must be adjusted:
- (a) on the assessment that the Office of State Revenue would issue for the land tax year current at the Settlement Date if the Seller was one natural person resident in Queensland and the Lot was the Seller's only land; or
- (b) based on the assumptions in clause 2.6(4)(a), if there is no separate Site Value for the Lot, on a notional Site Value equal to:
- | | | |
|------------------------|---|--|
| Site Value of the Land | x | Interest schedule for
enlilement of Lot
Aggregate Interest
schedule for
enlilement |
|------------------------|---|--|
- (5) If land tax is unpaid at the Settlement Date and the Office of State Revenue advises that it will issue a final clearance for the Lot on payment of a specified amount, then the Buyer may deduct the specified amount from the Balance Purchase Price at settlement and must pay it promptly to the Office of State Revenue. If an amount is deducted under this clause, then land tax will be treated as paid at the Settlement Date for the purposes of clause 2.6(2).
- (6) Any Outgoings assessable on the amount of water used must be adjusted on the charges that would be assessed on the total water usage for the assessment period, determined by assuming that the actual rate of usage shown by the meter reading made before settlement continues throughout the assessment period. The Buyer must obtain and pay for the meter reading.
- (7) If any Outgoings are assessed but unpaid at the Settlement Date, then the Buyer may deduct the amount payable from the Balance Purchase Price at settlement and pay it promptly to the relevant authority or the Body Corporate, as appropriate. If an amount is deducted under this clause, the relevant Outgoing will be treated as paid at the Settlement Date for the purposes of clause 2.6(2).
- (8) Arrears of Rent for any rental period ending on or before the Settlement Date belong to the Seller and are not adjusted at settlement.
- (9) Unpaid Rent for the rental period including both the Settlement Date and the following day ("Current Period") is not adjusted until it is paid.
- (10) Rent already paid for the Current Period or beyond must be adjusted at settlement.
- (11) If Rent payments are reassessed after the Settlement Date for periods including the Settlement Date, any additional Rent payment from a Tenant or refund due to a Tenant must be apportioned under clauses 2.6(8), 2.6(9) and 2.6(10).
- (12) Payments under clause 2.6(11) must be made within 14 days after notification by one party to the other but only after any additional payment from a Tenant has been received.

- (13) The Seller is liable for any Special Contribution levied on or before the Contract Date. The Buyer is liable for any Special Contribution levied after the Contract Date.
- (14) For the purposes of clause 2.6(13), an amount payable under an exclusive use by-law will be treated as levied on the date it is due.
- (15) The cost of Bank cheques payable at settlement:
- (a) to the Seller or its mortgagee are the responsibility of the Buyer; and
- (b) to parties other than the Seller or its mortgagee are the responsibility of the Seller.
- (16) The Seller is not entitled to require payment of the Balance Purchase Price by means other than Bank cheque without the consent of the Buyer.
- (17) Upon written request by the Buyer, the Seller will, prior to Settlement, give the Buyer a written statement, supported by reasonable evidence, of—
- (a) all Outgoings and all Rent for the Property to the extent they are not capable of discovery by search or enquiry at any office of public record or pursuant to the provisions of any statute; and
- (b) any other information which the Buyer may reasonably require for the purpose of calculating or apportioning any Outgoings or Rent under this clause 2.6.

If the Seller becomes aware of a change to the information provided the Seller will as soon as practicable provide the updated information to the Buyer.

3. Finance

- 3.1 This contract is conditional on the Buyer obtaining approval of a loan for the Finance Amount from the Financier by the Finance Date on terms satisfactory to the Buyer. The Buyer must take all reasonable steps to obtain approval.
- 3.2 The Buyer must give notice to the Seller that:
- (1) approval has not been obtained by the Finance Date and the Buyer terminates this contract; or
- (2) the finance condition has been either satisfied or waived by the Buyer.
- 3.3 The Seller may terminate this contract by notice to the Buyer if notice is not given under clause 3.2 by 5pm on the Finance Date. This is the Seller's only remedy for the Buyer's failure to give notice.
- 3.4 The Seller's right under clause 3.3 is subject to the Buyer's continuing right to give written notice to the Seller of satisfaction, termination or waiver pursuant to clause 3.2.

4. Building and Pest Inspection Reports and Pool Safety

- 4.1 This contract is conditional on the Buyer obtaining a written building report from the Building Inspector and a written pest report from the Pest Inspector (which may be a single report) on the Property by the Inspection Date on terms satisfactory to the Buyer. The Buyer must take all reasonable steps to obtain the reports (subject to the right of the Buyer to elect to obtain only one of the reports).
- 4.2 The Buyer must give notice to the Seller that:
- (1) a satisfactory Inspector's report under clause 4.1 has not been obtained by the Inspection Date and the Buyer terminates this contract. The Buyer must act reasonably; or
- (2) clause 4.1 has been either satisfied or waived by the Buyer.

INFORMATION FOR DISCLOSURE STATEMENT

as at 19th October 2012

Body Corporate	Name of Scheme:	ZEN RESIDENCES			
	Community Titles Scheme No:	35293			
	Lot Number:	28	Plan Number:	SP170600	
Secretary	Name	Colin Batten			
	Address	GPO BOX 3025 BRISBANE QLD 4001			
	Telephone		Facsimile	(07) 3231 9085	
Body Corporate Manager	Name	Archers Body Corporate Mgmt			
	Address	GPO Box 3025 BRISBANE QLD 4001			
	Telephone	(07) 3002 2600	Facsimile	(07) 3002 2636	
Contributions and Levies	Levies Determined by the Body Corporate for this Lot				
	Administrative Fund	Amount	Due Date	Discount	If paid by
	01/09/11 to 31/12/11	\$1,197.95	11/09/11	\$239.59	11/09/11
	01/01/12 to 30/04/12	\$1,197.95	01/01/12	\$239.59	01/01/12
	01/05/12****31/08/12	\$1,309.10	01/05/12	\$261.82	01/05/12
	01/09/12****31/12/12	\$1,443.72	01/09/12	\$288.74	01/09/12
	01/01/13****30/04/13	\$1,443.72	01/01/13	\$288.74	01/01/13
	01/05/13****31/08/13	\$1,443.72	01/05/13	\$288.74	01/05/13
	Sinking Fund				
	01/09/11 to 31/12/11	\$629.85	11/09/11	\$125.97	11/09/11
	01/01/12 to 30/04/12	\$629.85	01/01/12	\$125.97	01/01/12
	01/05/12****31/08/12	\$629.85	01/05/12	\$125.97	01/05/12
	01/09/12****31/12/12	\$559.46	01/09/12	\$111.89	01/09/12
	01/01/13****30/04/13	\$559.46	01/01/13	\$111.89	01/01/13
	01/05/13****31/08/13	\$559.46	01/05/13	\$111.89	01/05/13
	All levies are inclusive of GST from 1st July 2000.				
Extent to which Contributions and Levies are based on Contribution entitlements	The Administrative & Sinking Fund Levies are calculated based on the Contribution Schedule Lot Entitlements for the lots included in the scheme.				
Extent to which Contributions and Levies are based on Interest entitlements	The Insurance Fund Levy (see 'Annexure - Levy Details') is calculated based on the Interest Schedule Lot Entitlements for the lots included in the scheme. If there is no amount detailed as Insurance Fund or no page headed 'Annexure - Levy Details' it means that all of the annual contributions payable by the lot owner are based on the contribution schedule lot entitlements				
Entitlements - Statement to Buyer	The contribution and interest schedule lot entitlements for the lots included in the scheme are set out in Schedule A of the Community Management Statement for the scheme, a copy of which is attached				
Community Management Statement	A copy of the Community Management Statement for the Scheme is attached hereto.				

Body Corporate and Community Management Act 1997
Section 206

INFORMATION FOR DISCLOSURE STATEMENT (continued)

Body Corporate

Name of Scheme:

ZEN RESIDENCES

Community Titles Scheme No:

35293

Lot Number:

28

Plan Number:

SP170600

Improvements on
Common
Property for
which Buyer will
be Responsible

Body Corporate
Assets Required to
be Recorded on
Register

There are no assets required to be recorded.

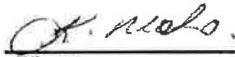
Committee

Information
prescribed under
Regulation
Module

Nil

Signing


Seller/Sellers Agent

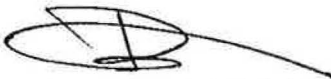

Witness

22-10-12
Date

Buyers
Acknowledgement

The Buyer acknowledges having received and read this statement from the
Seller before entering into the contract.


Buyer


Witness

29 Oct 12
Date

Additional Information

Body Corporate	Name of Scheme:	ZEN RESIDENCES	
	Community Titles Scheme No:	35293	
	Lot Number:	28	Plan Number: SP170600

Lot Entitlements and Other Matters	Interest Schedule	Aggregate	9999	Entitlement of Lot	244
	Contribution Schedule	Aggregate	10003	Entitlement of Lot	247
	Balance of Sinking fund at end of last Financial Year		393,812.39	as at	30/04/12
	Insurance Levies not included in Administrative Fund Levies:	See Annexure			
	Monetary Liability under Exclusive Use By-Law				

Insurance	Type	Company	Policy No	Sum Insured	Due Date
	BUILDING	Strata Unit Underwriters	06S8990083	14,790,395	30/04/13
	OFFICE BEARERS	Strata Unit Underwriters	06S8990083	5,000,000	30/04/13
	PUBLIC LIABILITY	Strata Unit Underwriters	06S8990083	20,000,000	30/04/13

Mortgages or Securities over Body Corporate Assets	Nil
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DISCLOSURE STATEMENT (Continued)

Name of Scheme	ZEN RESIDENCES			CTS No	35293
Lot No.	28	Type	BUILDING FORMAT PLAN	Plan No	SP170600

ANNEXURE - LEVY DETAILS

Description	Amount	Due Date	Date Paid	Discount	If paid by	Date of Notice	Amount Overdue
SINKING FUND SPECIAL							
Building Rectification Works	3950.77	04/10/11	N/A	0.00	04/10/11	02/09/11	N/A
Building Rectification Works	3950.77	01/03/12	N/A	0.00	01/03/12	27/01/12	N/A
INSURANCE FUND							
01/09/11 to 31/12/11	183.00	11/09/11	N/A	36.60	11/09/11	09/08/11	N/A
01/01/12 to 30/04/12	183.00	01/01/12	N/A	36.60	01/01/12	07/12/11	N/A
01/05/12****31/08/12	183.00	01/05/12	N/A	36.60	01/05/12	28/03/12	N/A
01/09/12****31/12/12	117.12	01/09/12	N/A	23.42	01/09/12	27/07/12	N/A
01/01/13****30/04/13	117.12	01/01/13	N/A	23.42	01/01/13		N/A
01/05/13****31/08/13	117.12	01/05/13	N/A	23.42	01/05/13		N/A

Items marked with **** are for periods that are outside the current financial year. They may also be subject to ratification at the next General Meeting

Additional Information (continued)

Body Corporate

Name of Scheme:

ZEN RESIDENCES

Community Titles Scheme No:

35293

Lot Number:

28

Plan Number:

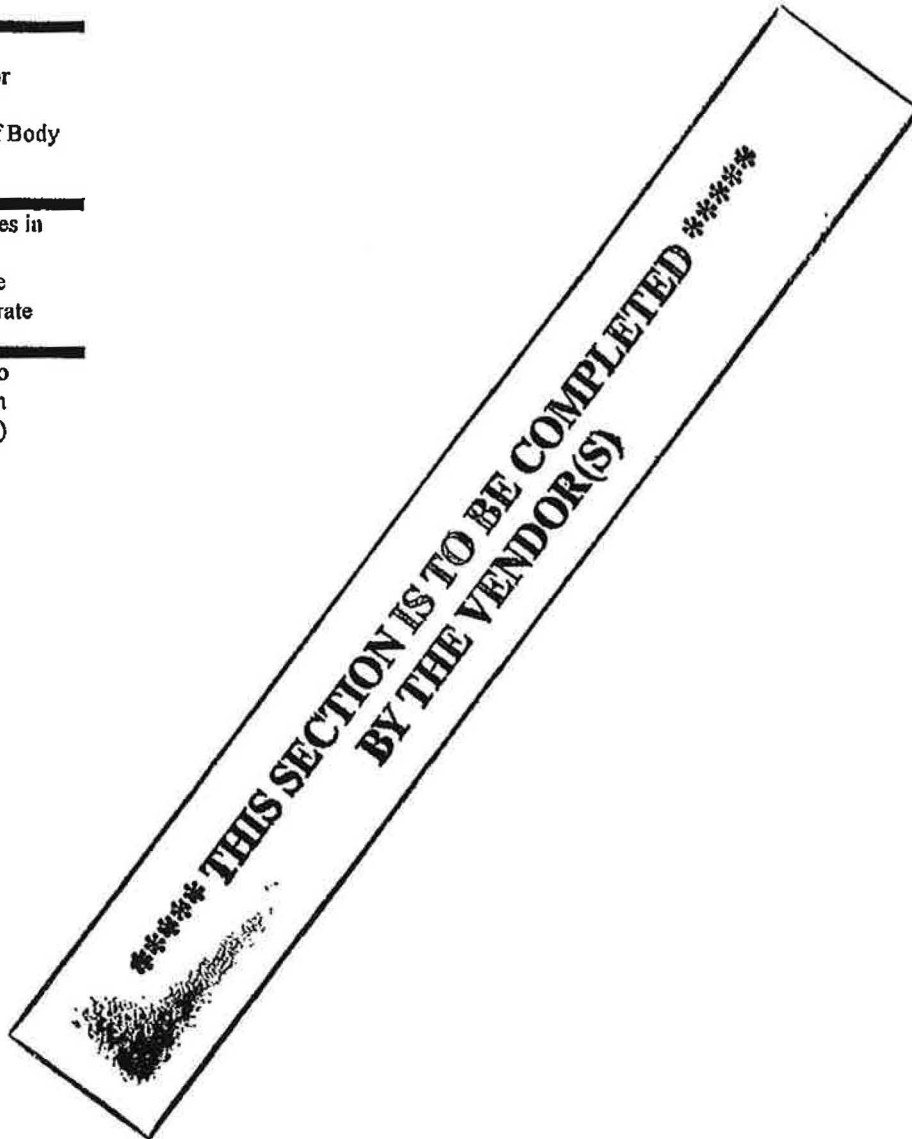
SP170600

Latent or Patent
Defects in
Common
Property or Body
Corporate Assets

Actual or
Contingent or
Expected
Liabilities of Body
Corporate

Circumstances in
Relation to
Affairs of the
Body Corporate

Exceptions to
Statements in
Clause 7.4(2)



PAMD Form 27c



ABN: 97 406 359 732

Selling agent's disclosure to buyer

- What we must tell you before you sign

Property Agents and Motor Dealers Act 2000

This form is effective from 1 July 2009

Department of Employment, Economic
Development and Innovation (DEEDI)

WARNING

The client is advised to seek Independent legal advice before signing this form.

This form must be completed and handed to the buyer before the contract for sale of residential property is entered into. Failure to make the required disclosure to the buyer will attract a penalty.

To the buyer: The purpose of this form is to make you aware of relationships that your selling agent has with persons to whom they refer you, and of benefits that your selling agent and other people receive from the sale.

A selling agent must complete this form if they are one or more of the following:

- Real estate agent
- Real estate salesperson acting for a real estate agent
- Property developer
- Property developer salesperson
- Person acting as a real estate agent although not authorised by a licence to do so
- Person acting as a property developer although not authorised by a licence to do so

No attachments or schedules may be added to this form.

If you need more information about this form, you can visit the Office of Fair Trading website at www.fairtrading.qld.gov.au.

Part 1 - Selling agent details

Please mark appropriate box.

Name Favray Pty Ltd & Lush Holdings Pty Ltd atf T/A RAAS Real Estate-Brisbane

☒ Licence No. / ☐ Registered No. 2507272 & 1800919

Part 2 - Property details

Address 28/9-11 Manning Street, South Brisbane QLD 4101

Lot 28

Plan SP 170600

Title Reference 50607329

Part 3 - Selling agent's disclosure

3.1 Benefits

Notice to selling agent:

You **MUST** complete this section if you have referred the buyer to anyone for professional services associated with the sale and

- (a) you have any relationship (personal or commercial) with that person or entity to whom you have referred the buyer; and/or
- (b) you derive or expect to derive any consideration (whether monetary or otherwise) from that person or entity to whom you have referred the buyer.

For guidance on completing table and meaning of benefit see notes on page 3 of this form.

Name of person/ entity to whom buyer referred	Nature of relationship with selling agent	Benefit derived by selling agent (if any) \$ Amount (see notes page 3)	Benefit to person/entity to whom buyer referred (if any). \$ Amount (see notes page 3)

Only complete this section if the described applies. If this does not apply to you, go to section 3.2.

If you have disclosed a benefit in this section, you **DO NOT** need to disclose it again in section 3.2.

If insufficient space, an additional Form 27c must be completed for the additional information.

Part 3 - Selling agent's disclosure continued**3.2 Benefits other than by referral**

Notice to selling agent:

You **MUST** disclose the amount, value or nature of any benefit, to your knowledge, (other than those already disclosed by you in Section 3.1) which any person has received, receives, or expects to receive in connection with the sale; for promoting the sale; or for providing a service in connection with the sale, of the property.

For guidance on completing table and meaning of benefit, see notes on page 3 of this form.

Payment type	Entity receiving payment	\$ Amount *See notes on page 3.
Commission	Raas Real Estate	\$10,945 (gst incl)
Lead generation fees		
Marketing fees	Raas Real Estate	\$297.00
Referral/Introduction fees		
Trailing commissions		
Any other fees		
Total \$ 11,242.00 (gst incl)		

This table must be completed.

If insufficient space, an additional Form 27c must be completed for the additional information.

Part 4 - Additional disclosure declaration by property developer or person acting as a property developer

This section applies **ONLY** if the property is being sold by a property developer.

☐

I am a property developer or person acting as a property developer, and hold an interest of at least 15% in the property. (Mark box if yes)

Part 5 - Selling agent's disclosure declaration

The information I have provided in this form is true to the best of my knowledge, information and belief.

Name Mike Butler

Name

Signature

Date

22-10-12

Part 6 - Buyer's acknowledgement

I/we have not yet entered into a contract for the purchase of the property described in section 2 above.

This form has been explained to me/us by the selling agent and I/we understand the nature and effect of the disclosures made in this form.

Name Paul Lawrence Stewart

Name

Signature

Date

Paul Lawrence Stewart

Lindsay Jay Stewart

P. Stewart

L. Stewart

29 Oct 12

29 Oct 12

Notes to completing Sections 3.1 and 3.2

In Section 3.1:

1. 'Relationship' includes, but is not limited to, the following types of relationship:
 - Family
 - Business (other than a casual business relationship)
 - Fiduciary
 - Relationship in which one person is accustomed, or obliged, to act in accordance with the directions, instructions, or wishes of the other.
2. In Column 3 of the table you must disclose the amount (\$) or value (%) of consideration which you derive or expect to derive from the person or entity to whom you have referred the buyer.
3. In Column 4 of the table you must disclose the amount, value or nature of any benefit, which the person or entity to whom you have referred the buyer has received, receives or expects to receive in connection with the sale, or for promoting the sale, or for providing a service in connection with the sale, of the property.
4. For guidance on what to disclose as a 'benefit' see note below for Section 3.2.

In Section 3.2:

What you should disclose as a 'benefit'

It is your obligation to disclose any benefit, to your knowledge, which any person has received, receives, or expects to receive in connection with the sale, or for promoting the sale, or providing a service in connection with the sale, of the property.

The following lists are not exhaustive.

You NEED to disclose:

- your fees, commissions and remuneration
- fees, commissions and remuneration to be paid to financial institutions, finance brokers, financial advisers, financiers, valuers, marketing agents and promoters
- all benefits dependent on a successful sale (e.g. a commission or fee paid to any person as a success fee)
- marketing, advertising and promotion costs, where their payment is contingent on the sale of the lot ('the lot' is the property described in Item 2 on page 1 of this form).

Examples:

- a) where a marketing company will receive money or another benefit because the lot has sold
- **DO** disclose
- b) where a marketing company will receive money or another benefit for the sale of three lots, and the lot is one of those - **DO** disclose, even where the other two lots have not yet sold.

As a general rule, you need to disclose any benefits contingent on the sale of the property.

You NEED NOT disclose:

- mortgage pay-outs
- performance bonuses
- expenses incurred prior to the sale in preparation of the property for sale (such as painting or maintenance) and in developing the land (such as professional fees and disbursements paid to engineers, surveyors, architects and town planners)
- vendor's profit or net proceeds of sale
- property developer's profit or development fees
- non-monetary benefits, where the total value of those benefits in any 12 month period does not exceed \$100
- solicitors' professional fees and ordinary disbursements in relation to the developing, selling or purchasing of the property
- amounts payable to local, State or Federal Government.

\$ Amount (or value or nature) of the benefit

You must provide the amount, value or nature of the benefit as *accurately* as is possible at the time of the disclosure. You should express the benefit as follows:

1. **Amount (\$)** including GST. If you can not do this, then -
2. **a value (%)**. If you can not do this, then -
3. **describe the nature of the benefit**. You should **ONLY** do this if the benefit can not be described as an amount or value.

If you do not know the exact amount or value of the benefit, provide a reasonable estimate of the final amount or value, based on the purchase price at the time of disclosure.

Selling agent's commission

If you are a **real estate agent** — you are only required to disclose the total commission paid to your agency. You are not required to disclose how the commission is distributed to persons involved in the sale.

If you are a **property developer** — you must disclose the total commission paid on sale to your employees and/or salespersons. You are not required to disclose how the commission is distributed to persons involved in the sale.

This page is part of the approved form and must not be detached.

"Serving the real estate needs of the accommodation industry"

BUYERS ACKNOWLEDGEMENT LETTER

I / We acknowledge receipt of the following documents in the order as appears below:

1. PAMD Form 30c Warning Statement ✓
2. BCCM 14 Information Sheet ✓
3. The Contract of Sale ✓
4. Body Corporate Disclosure Statement ✓
5. Community Management Statement ✓
6. PAMD Form 27c Selling Agents Disclosure to Buyer ✓
7. Buyers Acknowledgement letter ✓

The above documents were delivered to me/us by hand/facsimile/email/post/ courier and were received by me in the order as set out above.

I/We also received a written statement from the agent directing my attention to the PAMD Form 30c Warning Statement, the BCCM Information sheet and the contract.

I/We signed the PAMD Form 30c Warning Statement prior to signing the contract.

Name/s: Paul Lawrence Stewart

LINDSAY JOY STEWART

Signature/s:   

Date: 29/10/2012

Pool safety certificate

23

Version 1 effective 6 October 2010

A pool safety certificate is required in Queensland when selling or leasing a property with a regulated pool. This form is to be used for the purposes of sections 246AA and 246AK of the *Building Act 1975*

1. Pool safety certificate number

Certificate number: 101052000208

2. Location is the swimming pool

Lot/s on plan details are usually shown on the title documents and rates notices

Street address: 11 MANNING ST, SOUTH BRISBANE 4101

Lot/s on plan: OSP170600

Local government area: BRISBANE CITY

3. Exemptions, alternative solutions or special restrictions for the swimming pool

If it is known that an exemption, alternative solution or restriction is applicable to the swimming pool please state this. For example, a restriction may require a permanent body of water that is part of the swimming pool barrier to be maintained to a minimum depth. This will help provide pool owners with a concise and practical explanation of the exemption, alternative solution or restriction. It will also help to ensure the ongoing use of the pool and any future modifications do not compromise compliance with the pool safety standard.

No exemptions apply

No alternative solutions apply

No special restrictions apply

4. Shared pool or non-shared pool

☒ Shared pool

☐ Non-shared pool

5. Pool safety certificate expiry

Effective date: 28 Jun 2012

Expiry date: 27 Jun 2013



6. Certification

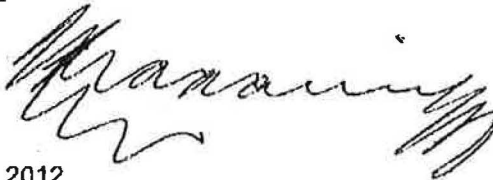
This certificate states that the pool safety inspector has inspected the regulated pool and is satisfied that the pool is a complying pool under the *Building Act 1975*.

I certify that I have inspected the swimming pool and I am reasonably satisfied that, under the Building Act 1975, the pool is a complying pool.

Name: Lawrie Haddrick

Pool safety inspector licence number: 101052

Signature:



Date: 28 Jun 2012

Other important information that could help save a young child's life

It is the pool owner's responsibility to ensure that the pool (including the barriers for the pool) is properly maintained at all times to comply with the pool safety standard under the Building Act 1975. Gates and doors giving access to the pool must always be kept securely closed while they are not in use. High penalties apply for noncompliance. It is essential that parents and carers carefully supervise young children around swimming pools at all times. Parents should also consider beginning swimming lessons for their young children from an early age. Please visit www.dip.qld.gov.au/poolsafety for further information about swimming pool safety. This pool safety certificate does not certify that a building development approval has been given for the pool or the barriers for the pool. You can contact your local government to ensure this approval is in place.

This is a public document and the information in this form will be made available to the public.